

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 7674 on the Organization of Access to One's Origins in the Context of Adoption or Medically Assisted Procreation with Third-Party Donors.

Deliberation No. 103/AV43/2023 of December 8, 2023

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Furthermore, Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

2. On November 29, 2021, the CNPD notified the draft bill No. 7674 concerning the organization of access to knowledge of one's origins in the context of adoption or medically assisted procreation with third-party donors.

3. By letter dated May 11, 2023, the Ministry of Justice invited the National Commission to express its opinion on the government amendments related to the aforementioned draft bill that were approved by the Government Council in its session of April 28, 2023 (hereinafter referred to as the "amendments").

4. Amendment No. 1 aims to modify the title of the draft bill to "Draft Bill on the Organization of Access to One's Origins in the Context of Adoption or Medically Assisted Procreation with Third-Party Donors" (hereinafter referred to as the "draft bill"). The CNPD notes that the other amendments primarily aim to address the formal objections raised by the Council of State in its opinion of July 16, 2021. At the same time, it regrets that almost all of its considerations, concerns, and questions raised in its initial opinion have not been taken into account by the authors of the amendments. Therefore, it takes the liberty of reiterating all of its observations made in its aforementioned opinion, while emphasizing certain points in this opinion, and even issuing additional recommendations regarding the amendments. After having

1 See deliberation No. 52/AV30/2021 of the CNPD of November 29, 2021, doc.parl. 7674/05 (hereinafter referred to as "initial opinion").

2 See opinion of the Council of State of July 16, 2021, doc. parl. 7674/03 (hereinafter referred to as "opinion of the Council of State").

CNPD

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 7674 on the Organization of Access to One's Origins in the Context of Adoption or Medically Assisted Procreation with Third-Party Donors.

1/7

****Preliminary Remarks****

The CNPD proposes to follow the new numbering of the articles of the draft law following the amendments.

1. Preliminary Remarks

1.1. Regarding the roles of the different stakeholders

5. Article 3.1 of the draft law expressly designates the "competent minister," that is, the minister responsible for Children's Rights (hereinafter referred to as the "minister"), as the data controller.

However, as criticized in its initial opinion, such clarity does not exist for the other actors mentioned in the draft law, such as, for example, hospital establishments or any other health professional involved in the birth under secrecy, or even for medically assisted procreation (hereinafter referred to as "MAP")

the fertilization centers or the doctor responsible for implementing MAP, or for other national adoptions, international adoptions, judicial authorities, or the central authority for adoption. These actors play a crucial role in the collection of personal data and their subsequent transmission to the data controller, and it is important to determine in the draft law their function, that is, whether they are to be considered as independent data controllers, as joint data controllers, or even as processors. These qualifications are essential for the application of the GDPR as they determine who is responsible for compliance with data protection rules and how the data subjects can exercise their rights.

1.2. Regarding categories of personal data

6. It should first be recalled that the GDPR applies to any information relating to an identified or identifiable natural person. Recital (26) of the GDPR specifies that "[t]o determine whether a natural person is identifiable, it is necessary to consider all means reasonably likely to be used by the data controller or by any other person to identify the natural person directly or indirectly [...]."
7. Furthermore, under the principle of data minimization, enshrined in Article 5.1.e) of the GDPR, personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.
8. The CNPD notes in this context that, despite the modifications provided by the amendments, the draft law still contains numerous uncertainties regarding the categories of personal data.
3. Provided for by Article 2 of the draft law.
4. See initial opinion, p.4, section "1. Regarding the roles of the different stakeholders."
5. See definitions in Article 4, points 7) and 8) of the GDPR. See also the guidelines 07/2020 concerning the concepts of data controller and processor in the GDPR, version 2.0, adopted by the European Data Protection Board on July 7, 2021.
6. See definition in Article 4, point 1) of the GDPR.

****CNPD****

Supplementary Opinion of the National Commission for Data Protection

Regarding Draft Law No. 7674 on the organization of access to one's origins in the context of adoption or medically assisted procreation with third-party donors.

2/7

categories of personal data that would, where applicable, be collected and transmitted to the minister. It refers, by way of example, to the following articles: Article 5 of the draft law (formerly Article 6) provides that birth parents are invited to leave "medical information about [their] health, information about the child's origins, the circumstances of the birth as well as any other information that [they] wish to make available to [their] child [...]"; according to Article 9, points 4° and 5° of the draft law (formerly Article 10), the minister is to receive the "identity declaration" from the birth parent(s), as well as "[t]he identity declarations made by the ancestors, descendants, and collateral relatives of the birth parents"; Article 14 of the draft law (formerly Article 16) states that, when a request for access to origins is made by children who have been subject to national adoption but do not fall under the regime of secret childbirth, the minister "collects information regarding the identity of the parent who gave birth to the child and the other birth parent from the judicial authorities"; under Article 15 of the draft law (formerly Article 17) on international adoption, the minister may obtain from the relevant organizations "all information related to the origins of the adopted child," on the one hand, as well as "from the authorities of the child's country of origin all information [...] on the child's origins as soon as the adoption has become final," on the other hand; Article 18 point 3° of the draft law (formerly Article 20) provides that "[a]ny other information available on the donor(s) may also be communicated" to the minister by the person or couple receiving the donation; Article 23 of the draft law (formerly Article 25) concerning children born before the entry into force of the future law in the context of a secret childbirth, as well as Article 24 of the draft law (formerly Article 26) concerning children born and adopted before the entry into force of the future law in the context of other national adoptions and international adoptions, both state that the entities listed "have the obligation to communicate elements relating to the identity of the birth parents or any other information, file, and material object left by the

birth parent(s) to the competent minister [...]"

9. The entirety of these formulations is particularly vague and requires clarification. Indeed, it is necessary to question what the authors of the draft law intended to convey by "information about the child's origins, the circumstances of the birth as well as any other information," "information relating to identity," "information relating to the origins of the adopted child," or even "any other information available on the donor(s)" or "any other information, file, and material object left by the birth parent(s)," as well as the "identity declarations."

CNPD

Supplementary opinion of the National Commission for Data Protection regarding draft law No. 7674 on the organization of access to one's origins in the context of adoption or medically assisted procreation with third-party donors.

3/7

10. More specifically, it is not clear from the text of the draft law whether the terms used refer to personal data or not. The CNPD wishes to point out in this regard that there is a risk of (re)identification of a natural person through a combination of information, even if qualified as "non-identifying" by the authors of the draft law, which results in the application of the rules regarding data protection. In other words, if it were, for example, possible for the minister to use and cross-reference all the data obtained in the context of the draft law and link it to a specific natural person, thereby allowing for the indirect identification of that person, in that case, the GDPR would be applicable.

11. Nevertheless, in light of the imprecision of the formulations used by the authors of the draft law and the resulting legal ambiguity, it must be noted that the draft law under review does not meet the requirements of clarity, precision, and predictability that a legal text must fulfill, in accordance with the jurisprudence of the Court of Justice of the European Union and the European Court of Human Rights.

12. Similarly, in its current state, the CNPD is unable to assess whether the aforementioned principle of data minimization is being respected. It therefore recommends that the authors of the draft law enumerate in a single article, depending on the scenarios (anonymous childbirth, national adoption, international adoption, assisted reproduction), the categories of personal data that would, if applicable, be collected and processed. Alternatively, it could be considered to include at the beginning of each chapter a list of the categories of data that would be processed during the implementation of the relevant chapter.

13. Finally, the CNPD wishes to emphasize that from a data protection perspective, there is nothing to prevent a child from accessing non-personal data, that is to say, data that cannot be linked to a specific natural person. This includes, for example, medical information about the parent's health that does not identify them but would allow the child to at least access information related to their genetic heritage and potential health risks. It refers, in this context, to the considerations of the Consultative Commission on Human Rights expressed in its opinions of July 6, 2022, and July 3, 2023.

1.3. On the establishment, if applicable, of a computer tool

14. Already in the financial note of the initial draft law, the authors mentioned that the introduction of said draft "requires the development of a computer tool for the safeguarding of highly sensitive confidential data." Nevertheless, neither the draft of the CNPD

Supplementary opinion of the National Commission for Data Protection regarding draft law No. 7674 on the organization of access to one's origins in the context of adoption or medically assisted procreation with third-party donors.

4/7

Law itself and its explanatory memorandum, nor the amendments refer to this IT tool.

15. There is therefore a need to question its use in the context of exercising access to one's origins, particularly regarding any potential processing of personal data carried out using this tool. It wishes to reiterate the questions raised in its initial opinion¹⁰ that should be addressed in the text of the draft

law: "What data is intended to be included in this tool? How is this tool populated? In the context of confidential childbirth, does this mean that an authorized person opens the envelopes received to then insert the information into the IT tool? What happens to the physical medium afterward? Do subcontractors act in the operation and management of this tool?"

16. Furthermore, the obligation of the data controller to ensure an appropriate level of security relative to the risks to the rights and freedoms of the individuals concerned by the processing of personal data, in accordance with Article 32 of the GDPR, deserves particular attention in this case, as unauthorized access to data, data leaks or losses, or unwanted modifications could cause serious harm to the individuals concerned.

17. In the event that an IT tool is used to process the data in question, which seems to be the case given the financial sheet of the initial draft law, it would be necessary to provide for an access logging system. In this regard, the CNPD recommends that logging data be retained for a period of five years from their recording, after which they are deleted, unless they are subject to a control procedure.

18. Finally, as expressed in its initial opinion¹¹, the National Commission considers it essential, given the sensitivity of certain processed data, to provide for the modalities for implementing this principle of integrity and confidentiality in a legislative or at least regulatory text.

****2. Regarding Article 3 of the draft law (formerly Article 4)****

19. The CNPD notes that the authors of the draft law have followed the recommendation of the Council of State expressed in its opinion of July 16, 2021, and reiterated by the CNPD in its initial opinion, to delete paragraph 5 of the article in question, which merely recalled the principles set out in Article 5 of the GDPR. However, none of the other observations of the CNPD have been taken into account by the authors of the amendments.

20. Thus, in light of the principle of purpose limitation provided for in Article 5.1.b) of the GDPR, the provisions of Article 3.3 of the draft law remain too general in that they do not allow for covering the plurality of purposes of the processing that would be implemented by the minister within the framework of the draft law. Indeed, Article 3.3 of the draft law is limited to...

10 See initial opinion, pp. 3 and 4.

11 See initial opinion, p. 14.

CNPD

Supplementary Opinion of the National Commission for Data Protection

Regarding Draft Law No. 7674 on the Organization of Access to One's Origins in the Context of Adoption or Medically Assisted Procreation with Third-Party Donors.

5/7

****To provide that "the processing of this data is necessary for the purpose of implementing a child's access to their origins in the context of adoption or medically assisted procreation with third-party donors." Nevertheless, it follows from the various provisions of the draft law that the minister would be responsible for compiling files based on information received or sought, managing access requests received from children, as well as from birth parents inquiring about the child's potential search, just as well as communicating to children their files and/or the information collected.****

21. ****With a view to improving and ensuring a general understanding of the draft law and to guarantee legal certainty, the CNPD therefore reiterates its recommendation made in its initial opinion to clarify in the body of the text the different data processing activities that would be implemented by the minister in the context of their missions and the various purposes pursued.****

22. ****Finally, except for a few terminological adjustments, Article 3.2 of the draft law still provides that "all personal data is retained for one hundred years from the birth of the child and must be deleted after this period." However, as lamented in its initial opinion, due to the lack of explanations regarding the criteria used to determine this data retention period by the authors of the draft law, the CNPD finds itself unable to assess whether, in this case, the principle of data retention limitation provided for by Article 5.1.e) of the GDPR is respected.****

****3. As for Article 4 of the draft law (former Article 51)****

23. ****Article 4.2 of the draft law enumerates the various information that a hospital establishment or any health professional who assisted in the birth that took place outside a hospital must communicate to the birth parents in the event of a secret birth. Following amendment No. 7, paragraphs 1 and 3 of Article 4 of the draft law specify the format of this communication, namely that the hospital establishment or the aforementioned professional must transmit the relevant information "based on a pre-established document made available by the competent minister, which must be signed by the parent(s). In the event that this communication is not possible or if the signature of the document is refused by the parent(s), this must be noted on the document."****

24. ****It emerges from the commentary on said amendment No. 7 that this document will serve as proof of the communication of the relevant information, on the one hand, and that the signature "can obviously consist of non-identifying signs of the identity of the parent(s)," on the other hand. While understanding the possibility of signing in such a manner to maintain the confidentiality of the parents' identity, the National Commission, on the other hand, has difficulties in grasping how this document would then serve as proof of communication in such a specific situation. Similarly, it wonders whether the signed document is to be transmitted and retained by the CNPD.****

****Complementary Opinion of the National Commission for Data Protection regarding Draft Law No. 7674 on the organization of access to one's origins in the context of adoption or medically assisted procreation with third-party donors.****

****6/7****

****Minister or by hospital reinstatement, or even by the health professional who supervised the birth that took place outside a hospital establishment.****

25. Finally, Article 4.4 of the draft law, just like Article 5.3 of the draft law, now provides that all information collected and signed documents must be deleted when a child born under secrecy is returned to one of their parents. While the CNPD congratulates the authors of the draft law for considering this scenario, it nevertheless wonders whether the data concerning the other birth parent are also deleted or if the deletion only concerns the information and documents regarding the parent to whom the child has been returned.

****4. Regarding Article 9 of the draft law (formerly Article 10)****

26. Article 9 point 5° of the draft law still provides that the minister is to receive "[t]he identity declarations made by the ascendants, descendants, and collateral relatives of the birth parents." The CNPD wishes to refer in this context to the section "1.2. Regarding the categories of personal data" of this opinion, while emphasizing that neither the initial draft law nor the amendments provide additional details or explanations regarding the categories of personal data that would appear on said "identity declarations."

27. It is also deemed essential to reiterate its questions posed in its initial opinion regarding how this data would be collected: "Is it the responsibility of the ascendants, descendants, and collateral relatives to address themselves directly to the minister? How will the minister ensure that the identity declarations are attributed to the concerned child, given that only the first names and sex of the child as well as the date and place of birth (and not the identity of the birth parents) are mentioned outside the envelopes referred to in Article 6 of the draft law? Will the minister verify if there is indeed a familial link between these individuals and the birth parents?" The Council of State has also expressed similar concerns in its opinion.

Adopted in Belvaux on December 8, 2023.

The National Commission for Data Protection

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14 See initial opinion, p.9, section "2. Regarding Article 10 of the draft law."

15 See opinion of the Council of State, p.6.

CNPD

Supplementary opinion of the National Commission for Data Protection

regarding draft law n°7674 on the organization of access to one's origins in the context of adoption or medically assisted procreation with third-party donors.

7/7